

IN THE SUPREME COURT OF BANGLADESH

HIGH COURT DIVISION

(CIVIL REVISIONAL JURISDICTION)

Civil Revision No. 22 of 2023

In the matter of:

An Application under section 115(1) of the Code of Civil Procedure, 1908

And

In the matter of:

Present

Mr. Justice Mamnoon Rahman

Anbecha Begum and others.

...Petitioners.

-Vs-

Sayed Md. Shadikur Rahman
and others.

...Opposite parties.

Mr. Kingshuk Das, Adv.

...For the petitioners.

None appears

...For the opposite parties.

Heard on: **20.06.2023 & 24.08.2023**

And

Judgment on: **The 30th August, 2023**

In an application under section 115(1) of the Code of Civil Procedure, 1908 rule was issued calling upon the parties to show cause as to why the judgment and order dated 09.06.2022 passed by the learned District Judge, Sunamganj in Miscellaneous Appeal No. 09 of 2021 dismissing the appeal and thereby affirming the judgment and order dated 15.03.2021 passed by the learned Assistant Judge, Jagganthpur, Sunamganj in Miscellaneous Case No. 10 of 2018 arising out of Misc. (Pre-emption) Case No. 18 of 2004 rejecting the applications of the petitioners prayed for restoration under order 9 Rule 9 of the Code of Civil Procedure along with section 5 of the

Limitation Act should not be set aside and/or such other or further order or orders passed as to this Court may seem fit and proper.

The short facts relevant for the dispose of the rule, are that, the present petitioner filed the Miscellaneous case for pre-emption before the trial court wherein the trial court vide order dated 04.04.2007 dismissed the miscellaneous case. Against which the present petitioner preferred Misc. Appeal being No. 13 of 2007 and the same was allowed as well as the case was sent back on remand. However, the trial court dismissed the same for non-appearance. Subsequently, the petitioner who was abroad returning to the country and came to know about the same and filed an application under Order 9 rule 9 of the Code of Civil Procedure, 1908 for setting aside the order of dismissal along with an application under section 5 of the Limitation Act. The trial court proceeded with the case wherein the present petitioner adduced three witnesses and the opposite party adduced one. The trial court after hearing the parties and considering the facts and circumstances rejected the miscellaneous case on question of limitation. Being aggrieved, the petitioner moved before the learned District Judge by way of Misc. Appeal No. 9 of 2021 wherein the lower appellate court after hearing the parties and considering the facts and circumstances vide judgment and order dated 09.06.2022 dismissed the appeal and thereby affirmed the judgment and order passed by the trial court. Being aggrieved by and dissatisfied with the

judgment and order passed by the court below the petitioner moved before this court and obtained the present rule.

None appears on behalf of the opposite party to oppose the rule though the matter has appeared in the list for couple of days.

Mr. Kingshuk Das, the learned Advocate appearing on behalf of the petitioner submits that both the court below without applying their judicial mind and without considering the facts and circumstances most illegally and in arbitrary manner passed the impugned judgment and order which requires interference by this court. He submits that admittedly the petitioner won in the court of appeal and wherein the court of appeal set aside the judgment and order passed by the trial court rejecting the miscellaneous case for pre-emption and remanded the same with an order for fresh trial which clearly shows that there are substantive right available on the part of the petitioner which requires to be adjudicated in accordance with law. He further submits that there is no denial that the petitioner resides in abroad for his livelihood and the case was conducted by his cousin by way of Power of Attorney who gave him a false impression about the amicable settlement of the case in between the parties and with the said hope he was kept silent and ultimately after returning of the country came to about the fate of the case and filed the instant application for setting aside the order of dismissal along with an application for condonation of delay. He further submits that each and every cases have to be

considered, considering the peculiarity, nature and character and in the present case in hand the petitioner categorically explained the reason but the same was not considered causing substantial injustice to the petitioner. In this connection he referred the decisions reported in 51 DLR(AD)(1999) 253. He also submits that the question of limitation can be exercised by the court of law when the explanation is reasonable and there is no laches or negligence and relied upon the decision to that context as reported in 69 DLR(2017) 150.

I have heard the learned Advocate for the petitioner. I have perused the impugned judgment and order passed by both the courts below, revisional application, grounds taken thereon, necessary papers and documents annexed herewith, provisions of law as well as decisions as referred to.

On perusal of the same, it transpires that the present case in hand admittedly the petitioner filed a case for pre-emption in the appropriate court of law impleading the opposite parties. It further transpires that the said trial court proceeded with the case and ultimately dismissed the miscellaneous case for pre-emption. Being aggrieved by and dissatisfied with the aforesaid judgment and order passed by the trial court the petitioner moved before the learned District Judge by way of appeal. The lower appellate court considered the case of both the appellant and respondents and thereby the court below allowed the appeal and set aside the order of dismissal passed

by the trial court and sent the case back to the trial court on remand for fresh trial with observation.

Admittedly, the proceeding was conducted by the brother of the petitioner by way of Power of Attorney as the petitioner resides abroad for his livelihood. It transpires that after returning of the case the same was dismissed for default for not taking any steps on the part of the petitioner in the trial court. However, the petitioner claimed that he got information from his Tadbirker that they are settling the matter amicably and he was very much hopeful for the same. After returning the home and on query he came to know that the case was actually dismissed for default for not taking any steps and after consulting the lawyer he filed a case under Order 9 rule 9 of the Code of Civil Procedure for setting aside the order of dismissal along with the application for condonation of delay under section 5 of the Limitation Act. Admittedly, there is a provision for filing a case under Order 9 rule 9 of the Code of Civil Procedure, 1908 within 30 days from such order of dismissal and in case of any delay there is a provision for invoking the provision of section 5 of the Limitation Act. It further transpires that the trial court examined as many as three witnesses on behalf of the petitioner and one on behalf of the opposite party.

On perusal of the judgment and order passed by the trial court it transpires that the trial court was not convinced about the question of compromise in between the parties. The lower appellate court also

affirmed the judgment and order passed by the trial court and also came to a conclusion regarding the compromise in between the parties. It further transpires that the lower appellate court and trial court categorically came to a conclusion that since the matter was settled amicably and compromised that's why the petitioner did not proceed with the case. It is vigorously found that there was no such attempt of compromise or amicable settlement in between the parties.

Admittedly, section 5 of the Limitation Act deals with the provision for condonation of delay in an appropriate case when the time prescribed by law is being expired the applicant can take the recourse of section 5 of the Act for condonation of such delay by explaining the reason. In the present case in hand, it clearly transpires that the petitioner was abroad and properly relying upon other person regarding the conduct of the proceeding. It also categorically transpires that the petitioner was convinced that the matter was settled amicably on compromise and that's why he was reluctant and after coming Bangladesh came to know about the fate and invoked the jurisdiction of the court of law for adjudication of the real question in controversy. Admittedly, a case is being pending before the trial court sent by the lower appellate court on remand and it is the right of a party to get the matter dispose of on merit by giving all opportunities to the parties. When a proceeding is pending a substantial right is being accrued on behalf of the parties to get the matter dispose of on

merit. While considering the question of limitation the court of law has to see whether the principle of substantial justice is being involved or not. In the case reported in 51 DLR(AD)(1999) 253 their lordships of our apex court held as follows;

It has been held by almost all the superior Courts of this sub-continent that the provisions of Order 22, rule 9 (2)(3) of the Code should be liberally construed. The reasons for such approach are not far to seek. In the first place, abatement of a suit precludes fresh suit on the same cause of action, although there is no trial on merit of the case. An order of abatement never goes to the merit of a dispute between the parties. If abatement is set aside the merit of the dispute can be determined. If the abatement is not set aside the applicant is deprived of the opportunity of proving his claim only on account of his culpable negligence or lack of vigilance. Therefore such negligence or lack of vigilance should not be readily concluded. Ordinarily there is no reason for an applicant to make willful default, for he does not get any benefit by coming late. Refusal to condone delay can result a meritorious matter being thrown out without any hearing whatsoever. As against this, when delay is condoned and the substitution is made the worst that can happen is that

a case is decided on merit after hearing the parties. Therefore the principle that substantial justice shall take preponderance over technical consideration should always be kept in view in deciding whether or not there is sufficient cause for the delay in making the application. There cannot be any presumption that the delay is caused deliberately or on account of culpable negligence or on account of malafides. In the absence of any definition of the expression "sufficient cause" employed in this Rule, the above considerations should prevail upon a Court while deciding the circumstances which form sufficient cause. This will undoubtedly differ from facts to facts, always leaning on liberal interpretation.

So, it transpires that their lordships of our apex court came to a conclusion that the principle of substantial justice shall take preponderance over technical consideration. Apart from that in the case reported in 69 DLR(2017) 150 the High Court Division came to a conclusion that if there is due diligence and *bonafide* intention of the party who try to seek their remedies an opportunities be given considering lenient view in question of limitation. In the present case in hand I am of the view that both the principles laid down by their lordships of our apex court as well as this court applies. Hence, I find substance in the instant rule.

Accordingly, the instant rule is made absolute and the impugned judgment and order passed by the court below is hereby set aside. The application under Order 9 rule 9 of the Code of Civil Procedure, 1908 is hereby allowed. However, the trial court is directed to proceed with the miscellaneous case strictly on merit in accordance with law by giving specific notices to both the parties.

Communicate the order at once.

(Mamnoon Rahman,J:)

Emdad. B.O.